

Tentative Rulings
August 27, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

9. *Hitt v. Hitt*, Case No. CIVSB2308875
Motion to be Relieved as Counsel for Defendant
8/27/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion by Krosenberger Rosenfeld, LLP, to be relieved as counsel for Defendant.

Here, the Krosenberger firm seeks to be relieved as counsel for Defendant. The motion is supported by a declaration establishing good cause pursuant to rule 1.16(b) of the Rules of Court. The Court is inclined to **GRANT** this unopposed motion. Relief is not final until the ruling is served on Plaintiff and a filed proof of service demonstrating that service.

Defendant Hitt is ordered to appear at the next hearing. The Court will inquire regarding her plans regarding representation and defense of this case.

10. *Wiggan v. Bryan, et al*, Case No. CIVSB2431607
Defendant's Motion to Set Aside Default Judgment
8/27/26, 9:00 a.m., Dept. S-17

The Court is inclined to **DENY**. The motion is not timely under the mandatory provision of Code of Civil Procedure section 473(b) nor is it accompanied by the required proposed answer or an attorney affidavit.

Relief under section 473(b), may be based either on: (1) an "attorney affidavit of fault," in which event, relief is mandatory; or (2) declarations or other evidence showing "mistake, inadvertence, surprise or excusable neglect," in which event relief is discretionary. (Code Civ. Proc., § 473(b); *Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25-26.) A trial court has broad discretion to vacate a default judgment, default, or order; however, said discretion can only be exercised if the moving party establishes a proper ground for relief, by proper procedure, and within certain time limits. (*Cruz v. Fagor America Inc.* (2006) 146 Cal.App.4th 488, 495.)

Relevant here, an application for relief from default under the mandatory provision of section 473(b), must be made "no more than six months after entry of judgment." (Code Civ. Proc., § 473(b).) The default was entered on February 10, 2025, and the interlocutory judgment was entered on July 24, 2025. Defendant filed his motion on June 4, 2026. Therefore, it is untimely.

Even in the alternative, the motion was not accompanied by a proposed answer, and there is no attorney affidavit in support of the motion. Defendant does not explain why he waited until June 4, 2026, to file his motion, which was ten months after he signed the agreement acknowledging that Gomez Law no longer represented him; thirteen months after he was present in court and informed that default was entered against him; and sixteen months after default was entered.
